Brain Booster



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NCERT NOTES

Social Science

CIVICS

Constitutional Design



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Class IX

Notes :- Constitutional Design

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1. Constitution and Its Importance

a. What Do You Mean by the Term Constitution?

The **Constitution** is a set of fundamental principles or established precedents according to which a state or organization is governed. It defines the structure, powers, and duties of government institutions and sets out fundamental rights and duties of citizens.

b. What Is the Importance of the Constitution?

- **Establishes Governance Framework:** It lays down the structure of government and its functioning.
- **Protects Fundamental Rights:** Ensures citizens' rights and freedoms.
- **Maintains Law and Order:** Provides a legal framework for administration and dispute resolution.
- **Defines Political Principles:** Sets democratic principles and institutions.
- **Promotes Social Justice:** Ensures equality and inclusivity.

2. Democratic Constitution in South Africa

a. What Do You Mean by the Term Apartheid System?

The **Apartheid system** was a policy of racial segregation in South Africa, enforcing discrimination against non-white citizens in all aspects of life, including political, economic, and social rights.

b. How Was the Apartheid System in South Africa Ended?

- **Resistance Movements:** Led by figures like Nelson Mandela.
- **International Pressure:** Economic sanctions and diplomatic isolation.
- **Negotiations:** Between the ruling government and opposition parties.
- **Democratic Elections (1994):** Led to the formation of a new constitution.

c. Basic Features of the New-Born Constitution of South Africa

- **Equality Before Law:** No discrimination based on race, gender, or religion.
- **Fundamental Rights:** Protection of individual liberties and human dignity.
- **Democratic Governance:** Power-sharing through elected representatives.
- **Independent Judiciary:** Ensuring justice and constitutional supremacy.

3. Making of the Constitution of India

a. Challenges of Newly Independent India in 1947

- **Partition and Communal Violence**
- **Integration of Princely States**
- **Economic and Social Disparities**
- **Linguistic and Cultural Diversity**
- **Establishing a Democratic Framework**

b. Factors Contributing to the Making of Our Constitution

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- **Historical Influences:** British laws, freedom movement ideals.
- **Diverse Social and Cultural Needs:** To accommodate varied communities.
- **International Examples:** Learning from U.S., U.K., and other constitutions.

c. How Was the Constituent Assembly Formed?

- Established under the **Cabinet Mission Plan (1946)**.
- **Elected members** from provincial legislatures.
- **Nomination of experts and minority representatives.**

d. Composition of the Constituent Assembly

- **Total Members:** Originally 389 (reduced to 299 post-partition).
- **Diverse Representation:** Lawyers, scholars, political leaders, minorities, and women.

e. Selection of Members of the Constituent Assembly

- **Indirect Elections:** Members elected by provincial legislatures.
- **Nominated Representatives:** For princely states and minorities.

f. How Was the Indian Constitution Formed?

- **Debates and Discussions:** Over 3 years (1946-1949).
- **Drafting Committee:** Chaired by Dr. B.R. Ambedkar.
- **Adopted on 26th November 1949, Enforced on 26th January 1950.**

g. Sources of the Indian Constitution

- **British Influence:** Parliamentary system.
- **U.S. Influence:** Fundamental Rights, Judicial Review.
- **Canadian Influence:** Federalism with a strong center.
- **Irish Influence:** Directive Principles of State Policy.

h. Salient Features of the Indian Constitution

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- **Lengthiest Constitution:** Comprehensive legal document.
- **Federal with Unitary Features:** Balance of power.
- **Parliamentary Democracy:** Elected representatives.
- **Fundamental Rights & Duties:** Ensuring citizens' freedoms and responsibilities.
- **Secularism:** Equal treatment of all religions.
- **Social Justice:** Special provisions for weaker sections.

i. Structure of the Indian Constitution

- **Parts:** 25
- **Articles:** 470+ (originally 395)
- **Schedules:** 12
- **Amendments:** 100+

4. Guiding Values of the Indian Constitution

a. Who Was Not a Member of the Constituent Assembly?

- **Mahatma Gandhi was not a member** of the Constituent Assembly.

b. Role of Mahatma Gandhi in the Making of the Constitution

- **Inspired Social Justice and Non-violence.**
- **Promoted Rural Development (Panchayati Raj).**
- **Advocated for Equality and Removal of Untouchability.**

c. Role of B.R. Ambedkar in the Making of the Constitution

- **Chairman of Drafting Committee.**
- **Championed Fundamental Rights & Social Justice.**
- **Abolished Untouchability (Article 17).**
- **Ensured Protective Measures for Marginalized Sections.**

d. Concept of "Tryst with Destiny"

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- **Jawaharlal Nehru's speech on 14th August 1947.**
- **Marked India's transition to independence.**
- **Emphasized commitment to democracy, justice, and progress.**

e. Philosophy of the Indian Constitution

- **Justice:** Social, economic, and political.
- **Liberty:** Freedom of thought, expression, and belief.
- **Equality:** No discrimination based on caste, religion, or gender.
- **Fraternity:** Unity and integrity of the nation.
- **Secularism:** State neutrality in religious matters.

5. Preamble of the Indian Constitution and Its Significance

a. What Do You Mean by the Preamble of the Indian Constitution?

The **Preamble** is the introductory statement of the Indian Constitution, stating its philosophy and objectives.

b. Significance of the Preamble

- **Defines the essence of the Constitution.**
- **Declares India as a Sovereign, Socialist, Secular, and Democratic Republic.**
- **Ensures Justice, Liberty, Equality, and Fraternity.**

6. Institutional Design of the Indian Constitution

- **Separation of Powers:** Executive, Legislature, Judiciary.
- **Checks and Balances:** Prevents misuse of power.
- **Federal Structure:** Division of power between Centre and States.
- **Independent Judiciary:** Ensures rule of law.

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